

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH,
MULTAN
JUDICIAL DEPARTMENT

Writ Petition No.4378 of 2024

Hafeez-ur-Rehman

Versus

**Provincial Selection Board-I (PSB-I) through Chief Secretary,
Punjab, Services & General Administration Department,
Lahore & others**

J U D G M E N T

Date of hearing: 10.03.2026.
Petitioner by: Abdul Rashid Sheikh, Advocate.
Respondents by: Malik Muhammad Bakhsh Khakhi, Assistant
Advocate General along with Javed Iqbal,
Senior Scientist, Cotton Research Institute,
Multan.

MUHAMMAD SAJID MEHMOOD SETHI, J.: This consolidated judgment shall decide the instant writ petition as well as connected writ petition i.e. **W.P. No.18929 of 2023**, as both these petitions arise out of common questions of law and facts.

2. Through the instant petition, the petitioner has assailed the decision of the Provincial Selection Board-I dated 14.03.2024, duly approved by the competent authority on 03.04.2024, whereby his case was not considered for promotion to the post of Principal Scientist (BS-19) on the ground that he was on Leave Preparatory to Retirement (“**LPR**”) in terms of Clause-21 of the Promotion Policy, 2010.

Through connected **W.P. No.18929 of 2023**, the petitioner has challenged the vires of Clause-21 of the Promotion Policy, 2010 on the premise that the said provision debars a civil servant on LPR from being considered for promotion, and is thus ultra vires the Punjab Civil Servants Act, 1974 (“**the Act of 1974**”) as well as

violative of the fundamental rights guaranteed under the Constitution of the Islamic Republic of Pakistan, 1973 (“**the Constitution**”).

3. Learned counsel for the petitioner contends that the petitioner continued to be a civil servant till the date of his superannuation and, therefore, could not be deprived of consideration for promotion merely on account of being on LPR. He submits that Clause-21 of the Promotion Policy, 2010 curtails the statutory right of consideration flowing from Section 8 of the Punjab Civil Servants Act, 1974, and therefore, is ultra vires the parent statute and violative of Articles 4, 9, 14, and 25 of the Constitution. He further contends that Clause-21 introduces a disqualification not contemplated by the statute and operates as a penal restriction without legislative sanction. He emphasizes that administrative policies must remain subservient to statutory provisions and constitutional mandates, and any policy inconsistent therewith is liable to be struck down. He contends that the Provincial Selection Board’s decision dated 14.03.2024 directly contravened this Court’s interim order of 13.03.2024, amounting to defiance and contumacious behavior. Learned counsel further emphasizes that administrative policies must conform to statutory provisions and remain subordinate to law; any policy exceeding statutory authority or violating fundamental rights is amenable to judicial review. He prays that Clause-21 be declared as *ultra vires* and requests for granting proforma promotion to the petitioner with all consequential benefits. He has placed reliance upon Din Muhammad and 2 others v. Abdul Rehman Khan (1992 SCMR 127), Pakistan Tobacco Company Ltd. and another v. Federation of Pakistan through Secretary, Ministry of Commerce, Islamabad and 3 others (1999 SCMR 382), Muhammad Sabir Khan and 13 others v. Rahim Bakhsh and 16 others (PLD 2002 Supreme Court 303), Wattan Party through President v. Federation of Pakistan through Cabinet Committee of Privatization, Islamabad and others (PLD

2006 Supreme Court 697), Messrs Al-Raham Travels and Tours (Pvt.) Ltd. and others v. Ministry of Religious Affairs, Hajj, Zakat and Ushr through Secretary and others (2011 SCMR 1621), Shahid Pervaiz v. Ejaz Ahmad and others (2017 SCMR 206), Bashir Ahmed Anjum v. Province of Punjab through Chief Minister Punjab, Lahore and others (2025 SCMR 206), Province of Punjab through the District Collector, Bhakkar v. Muhammad Chiragh and others (PLD 2026 Supreme Court 53) and Naeem Khan Niazi and others v. Federation of Pakistan through Secretary, Ministry of Interior, Government of Pakistan, Islamabad and another (PLD 2026 Supreme Court 64).

4. Conversely, learned Law Officer supports the impugned decision as well as Clause-21 of the Promotion Policy, 2010. He contends that promotion is not a vested right and Section 8 of the Act of 1974 itself makes it clear that no civil servant can claim promotion as of right. He further submits that the Government is competent to regulate the conditions and eligibility criteria for promotion through policy, and the impugned clause is a valid manifestation of such authority. He argues that LPR is a terminal leave granted immediately preceding retirement with the clear understanding that the officer would not return to active service; hence, exclusion of such officers from promotion is based on sound administrative rationale and cannot be termed arbitrary.

5. Arguments heard. Available record perused.

6. The undisputed facts of the case are that the petitioner, while serving as Senior Scientist (BS-18) in the Agriculture Department, Government of the Punjab, was due to retire on 11.06.2024. Prior to his superannuation, he proceeded on LPR vide order dated 19.05.2023 under the Punjab Revised Leave Rules, 1981. During the subsistence of his LPR, the process for promotion to the post of Principal Scientist (BS-19) was initiated. The petitioner sought consideration for promotion; however, the Provincial Selection Board-I, in its meeting held on 14.03.2024, declined to consider his

case in view of Clause-21 of the Promotion Policy, 2010. The said decision was subsequently approved on 03.04.2024. The core controversy, therefore, revolves around the legality and validity of Clause-21 of the Promotion Policy, 2010 and its application to the petitioner.

7. Section 8 of the Act of 1974 confers only a right of consideration for promotion, subject to the rules or policy governing the field, while expressly stipulating that promotion cannot be claimed as of right. The statutory framework thus clearly envisages that the conditions, eligibility criteria and modalities for promotion are to be regulated through rules or policy framed by the Government. In this context, the argument that the right to be considered for promotion flows absolutely and unconditionally from Section 8 is misconceived. The said provision does not operate in isolation; rather, it is subject to the regulatory framework governing service matters. Therefore, any eligibility for consideration is necessarily circumscribed by the applicable policy.

8. Leave Preparatory to Retirement occupies a distinct and unique position in service jurisprudence. It is not an ordinary leave but a terminal arrangement granted immediately preceding superannuation, enabling the civil servant to remain absent from duty till retirement. An officer proceeding on LPR does so with the clear understanding that he is effectively disengaging from active service. On the other hand, promotion is not merely a conferment of higher status or financial benefit; it inherently involves assumption of duties and responsibilities attached to the higher post. As a settled principle, promotion ordinarily becomes effective upon assumption of charge. An officer who is on LPR, and is neither expected nor required to rejoin service, is evidently not in a position to assume or discharge such responsibilities. In this backdrop, exclusion of officers on LPR from consideration for promotion is neither arbitrary nor unreasonable; rather, it is intrinsically linked with the functional and administrative requirements of the service.

9. Clause-21 of the Promotion Policy, 2010, therefore, does not take away any vested right of the petitioner. Instead, it prescribes a rational eligibility condition grounded in service exigencies. The said clause is fully consistent with the scheme of the Act of 1974 and cannot be termed ultra vires merely because it limits the class of officers eligible for consideration. The classification introduced through Clause-21 is also based on an intelligible differentia. A civil servant in active service and one who has proceeded on LPR stand on fundamentally different footings in terms of their availability and capacity to serve on a higher post. The exclusion of the latter category bears a direct nexus with the object of ensuring that promotions are granted to officers who can effectively discharge duties in higher positions. Such classification is, therefore, reasonable, non-discriminatory, and fully in consonance with Article 25 of the Constitution.

10. It is by now well-settled that policy matters relating to service structure fall primarily within the domain of the executive. Judicial review in such matters is limited and can only be invoked where a policy is shown to be patently arbitrary, mala fide, or inconsistent with statutory or constitutional provisions. This Court, while exercising constitutional jurisdiction, cannot substitute its own view for that of the policy-making authority. In the present case, the petitioner has failed to demonstrate that Clause-21 suffers from any such infirmity. On the contrary, the clause reflects a reasonable classification based on service status and serves a legitimate administrative purpose. Reference can be made to PESCO, WAPDA House through Chief Executive v. Ishfaq Khan and others (2021 SCMR 637), Awais Saeed and others v. Government of Punjab and others [2018 PLC (C.S.) 1135] and Tarique Mubeen v. Province of Sindh through Secretary Government of Sindh and 3 others [2025 PLC (C.S.) 136].

11. The contention regarding violation of the interim order dated 13.03.2024 is also without substance. The said order merely

directed consideration of the petitioner's case, subject to the final outcome of the petition. The record shows that the case of the petitioner was placed before the Board; however, he was found ineligible under the applicable policy. Consideration in accordance with law cannot be equated with a direction to ignore the governing policy. Hence, no element of defiance or contumacy is made out.

12. Another significant aspect is that the petitioner himself opted for and proceeded on LPR well before the meeting of the Provincial Selection Board. Having voluntarily withdrawn from active service under a known legal framework, he cannot subsequently claim entitlement to a benefit which presupposes active availability for service. The principles of acquiescence and estoppel squarely apply. A person who knowingly adopts a particular course of action, with full awareness of its consequences, cannot later be permitted to challenge the legal effects flowing therefrom. The petitioner, therefore, cannot be allowed to approbate and reprobate simultaneously. Reference can be made to Wali-ur-Rehman and others v. State Life Insurance Corporation and others [2007 PLC (C.S.) 836], Muhammad Ayyaz Akhtar v. Chairman State Life Insurance Corporation of Pakistan and another [2018 PLC (C.S.) Note 120], Muhammad Arshad Malik v. Pakistan International Airline Corporation through Managing Director, Karachi and 2 others (PLD 2021 Sindh 347), Messrs Karsaz (Pvt.) Limited Through Duly Authorized Representative v. Federation of Pakistan through Secretary, Ministry of Commerce and 4 others (2025 CLC 1281) and Malik Muhammad Anwar v. Chand Bibi (deceased) through Legal Heirs and others (2025 MLD 1294).

13. Viewed from every angle, Clause-21 of the Promotion Policy, 2010 represents a lawful and reasonable exercise of regulatory authority. It neither infringes any vested or statutory right of the petitioner nor violates any constitutional provision. Consequently, the decision of the Provincial Selection Board-I dated 14.03.2024, followed by approval dated 03.04.2024, being in

consonance with the governing policy, warrants no interference by this Court.

14. For the foregoing reasons, both writ petitions i.e. W.P. No.4378 of 2024 and W.P. No.18929 of 2023, being devoid of merit, are hereby **dismissed**. No order as to costs.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

Sultan / A.H.S.